

However, as noted, Plaintiff does not address that issue through her Original or Amended Motions, nor did Plaintiff file a reply to Defendants' Opposition, *which expressly raised this point*.

The motion fails for the foregoing reason alone. Even assuming *arguendo* the sole ground raised in the motion was sufficient on its own, Plaintiff has failed to sufficiently show mistake, inadvertence, surprise, or excusable neglect with respect to that ground.

First, the only explanation Plaintiff provides for appearing in Department A on May 21, instead of Department B, is that "[t]he notice [he] received identified Department A." (Amd. Hackett Decl., ¶ 5.) Without more details, this simply fails to persuade the Court that there was, in fact, any department confusion, particularly when the matter has been pending with this Court since 2024, and has been primarily heard in Department B, where the trial of the matter occurred in March 2026.

Second, Plaintiff presents evidence tending to show that he did not appear in *either* Departments A or B until approximately 9:10 a.m. on May 21. (See Amd. Hackett Decl., ¶¶ 6-8, 11 [stating that, "when" he appeared in Department A, the Court advised him that the matter was in Department B; he "immediately" proceeded to Department B, but when he arrived in Department B, the court clerk informed him that the case had already been called; and acknowledging that he later came to know the matter was called "at approximately 9:10 a.m."].) Yet, Plaintiff's *own* motion noticed the hearing for 8:30 a.m. Plaintiff does not explain or address the 40-minute delay, separate from the alleged department confusion, and, therefore, fails to justify the requested relief.

For all the foregoing reasons, the Motion is DENIED.

FAMILY LAW CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesse Powell et al v. Christina Yee et al

25FL000217

[1] APPLICATION OF JOSEPH STUEVER FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

[2] APPLICATION OF ROBERT DENUNZIO FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

[3] APPLICATION OF BRITTANY L. SUKIENNIK FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

[4] APPLICATION OF KEVIN J. ORSINI FOR ADMISSION PRO HAC VICE

TENTATIVE RULING: The application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesus Rafael Gonzalez Cruz et al v. Nicholas Patrick Essig et al

25CV001675

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Andra Watson v. Amazon.com Services, LLC

25CV002136

DEFENDANT AMAZON.COM SERVICES LLC'S MOTION TO COMPEL FURTHER RESPONSES AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$7,143.50

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff Andra Watson is ordered to serve, within 14 calendar days of Notice of Entry of the instant order, a further response to RFP No. 16, limited, however, to "DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action commenced on or after January 1, 2016, in which WATSON alleges damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety." Mr. Watson shall also produce documents responsive to the request, as limited, within the same period. The request by Defendant Amazon.com Services, LLC (Amazon) for an award of monetary sanctions is DENIED. Amazon is directed to serve and file a Notice of Entry of the instant order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Amazon moves, pursuant to Code of Civil Procedure sections 2031.310, 2023.010, and 2023.030, and California Rules of Court Rules 3.1345 and 3.1348, for an order compelling Plaintiff Andra Watson "to serve verified and complete responses within 14 days" to Defendant's Request for Production of Documents to Plaintiff, Set One, Request No. 16 (RFP No. 16).